

**BEFORE THE  
FEDERAL MARITIME COMMISSION**

Bakerly, LLC

Complainant,

v.

Seafrigo USA, Inc.

Respondent.

Docket No. 22-17

**JOINT REQUEST FOR EXTENSION OF DISCOVERY DEADLINES**

For the reasons set forth herein, Bakerly, LLC (“Bakerly”) and Seafrigo, USA Inc. (“Seafrigo”) hereby jointly move for extension by 60 days of the discovery deadlines set forth in the Scheduling Order entered on September 15, 2022.

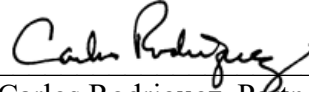
**Relevant Facts**

On September 15, 2022, the then Presiding Judge entered a Scheduling Order in the case. The Order provided, *inter alia*, for: 1) the service of interrogatories, document requests, and request for admissions on or before September 26, 2022; 2) the close of discovery by January 19, 2023; and 3) the Complainant and Respondent to file briefs and proposed findings of fact on March 3, 2023, and March 31, 2023, respectively. The parties timely served and responded to discovery requests and have negotiated in good faith to resolve discovery disputes.

Recognizing, however, that the dispute at issue is exceedingly complex, involving over 800 separate shipments occurring over an extended period of time, the parties have jointly decided that mediation before CADRS could be beneficial. This is partly in recognition of the fact that simply litigating the matter before the Commission would be extremely time consuming (for both the Commission and the parties) and expensive. In further recognition of the fact that seeking to complete discovery prior to January 19, 2023, while simultaneously engaging in mediation including depositions, would not mitigate litigation expenses but instead compound them, the parties hereby jointly request that the discovery deadlines in the Scheduling Order be extended by 60 days.

This is the parties' first request for extension of the Scheduling Order.

Respectfully submitted,

A handwritten signature in black ink, appearing to read "Carlos Rodriguez", written over a horizontal line.

Carlos Rodriguez, Partner  
Husch Blackwell, LLP  
1801 Pennsylvania Avenue, NW  
Suite 1000  
Washington, D.C. 20006-3606  
Telephone: 202-378-2365  
Fax: 202-342-6793  
Carlos.Rodriguez@huschblackwell.com

*Attorney for Bakerly, LLC*

A handwritten signature in blue ink, appearing to read "Brendan Collins", written over a horizontal line.

Brendan Collins  
GKG Law, P.C.  
1055 Thomas Jefferson Street, N.W.  
Suite 620  
Washington, D.C. 20007  
Telephone: (202) 342-6793  
bcollins@gkglaw.com

*Attorney for Seafrigo USA Inc.*

December 21, 2022